BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

PRINCIPAL BENCH, NEW DELHI

Company Application No.CA (CAA) – 120(PB)/2018

Connected with

Company Petition CAA – 123(PB)/2018

Order Pronounced on: 02.11.2018

Coram:

CHIEF JUSTICE (Rtd.) SHRI M.M. KUMAR

HON'BLE PRESIDENT

&

DR. DEEPTI MUKESH

MEMBER (JUDICIAL)

IN THE MATTER OF:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

AND

IN THE MATTER OF SCHEME OF ARRANGEMENT

BETWEEN

M/s NAMAN BROADCASTINGS AND TELECOMMUNICATIONS PRIVATE LIMITED

(PETITIONER NO.1/DEMERGED COMPANY)

AND

M/s SOFTLINE MEDIA NETWORK PRIVATE LIMITED

(PETITIONER NO.2/RESULTING COMPANY)

AND

M/s SHARPLINE NETWORK PRIVATE LIMITED

(PETITIONER NO.3/RESULTING COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

For the Applicants: Mr. Ravi Sharma, CS

MEMO OF PARTIES:

M/s NAMAN BROADCASTINGS AND TELECOMMUNICATIONS PRIVATE LIMITED

Having its registered office at:

24/27-28, 2nd Floor,

West Patel Nagar, New Delhi- 110008

... PETITIONER NO.1 /DEMERGED COMPANY

AND

M/s SOFTLINE NETWORK PRIVATE LIMITED

Having its registered office at:

259/A, 14-BLK-B,

Ramesh Enclave New Delhi- 110086

.... PETITIONER NO.2 /RESULTINGCOMPANY

AND

M/s SHARPLINE NETWORK PRIVATE LIMITED

Having its registered office at:

Basement East Patel Nagar, New Delhi- 110008

.... PETITIONER NO.3 /RESULTINGCOMPANY

ORDER

1. This petition for second motion has been filed on 14.08.2018 under the provisions of Sections 230-232 of the Companies Act,2013 read with Rule 16 of the Companies (Compromise, Arrangements, Amalgamation) Rules,2016 for the Scheme of Arrangement (for brevity Scheme) praying for fixing a date of hearing of the main Company Petition as well as for issuance of direction concerning publication of notices in press to be carried and notices to be issued to the authorities concerned including regulators, if any.

2. From the records, it is seen that the First Motion application seeking direction for dispensing the meeting of the Equity Shareholders of the Petitioner Companies was filed before this Tribunal vide CA (CAA)- 120(PB)2018 and based on such joint application moved under Sections 230-232 of the Companies Act, 2013, directions were issued by this Tribunal, wherein the meeting of the Equity Shareholders of the Petitioner Companies were dispensed with vide order dated 07.08.2018 as consents from all the members had

been obtained by the Petitioner Companies for the approval of the Scheme or there being none which obviates the necessity of convening of a meeting. Further by the above said order, in view of the absence of any Secured and Unsecured Creditors as placed by the applicants therein being the petitioners herein, the necessity of convening their respective meetings did not arise.

3. Taking into consideration the submissions made and documents placed on record, it is hereby ordered as follows:

(i) The date of hearing of the Joint Petition filed by the Petitioners for the approval of the Scheme is fixed on **17th December 2018**.

(ii) Notice of the hearing shall be advertised in the newspapers namely, "Business Standard" (English, Delhi edition) and "Jansatta" (Hindi, Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the public notice, each of the Petitioner(s) shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs; (c) the Income Tax Department through the Income Tax Cell at DCIT (High Court Cell), Lawyer's Chamber, Block No. 1, Room No. 428 & 429, Delhi High Court, New Delhi, along with full details of assessing officer and PAN Card numbers of the companies; (d) Official Liquidator; and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notices shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have

desired to be heard in their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) All the Petitioners shall at least 7 days before the date of hearing of the Petition shall file an affidavit of service in relation to publication effected in the newspapers as well as service of notices on the Authorities specified above including the Sectoral regulator as well as to Objectors, if any.

(vi) Objection to the Scheme, if any, contemplated by the authorities, to whom notices have been given on or before the date fixed for hearing, may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed

there under.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Act, 2013, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of statutory auditors of the petitioner companies.

(viii) The next date of hearing of the Petition shall be on **17th December 2018** for the consideration of the approval of the Scheme of Arrangement as contemplated between the Petitioner Companies.

—Sd—

(M.M. KUMAR) 02.11.2018
PRESIDENT

—Sd—

(DR. DEEPTI MUKESH)
MEMBER (TECHNICAL)